

Structural and Procedural Reform of the Electronic Writ of Payment in Poland: Systemic Vulnerabilities of Joint and Several Liability and the Path Toward Full Judicial Digitization

The landscape of Polish debt collection and civil litigation was fundamentally re-engineered by the enactment of the Act of July 4, 2019, amending the Code of Civil Procedure (*Kodeks postępowania cywilnego* – k.p.c.) and other selected statutes.¹ This comprehensive legislative intervention dissolved the legacy operational paradigm of the Electronic Writ of Payment (*Elektroniczne Postępowanie Upominawcze* – EPU), a highly specialized, paperless, and centralized civil process managed exclusively by the 6th Civil Division of the District Court of Lublin-West (*Sąd Rejonowy Lublin-Zachód w Lublinie*, commonly known as the "e-court").² The central reform was the complete replacement of the legacy "continuation principle" (*zasada kontynuacji*) with a strict "dismissal principle" (*zasada umorzenia*).¹

Under the pre-2020 procedural code, whenever an EPU claim encountered an obstacle—such as a lack of prima facie grounds, a failure of service to the defendant, or a timely filing of an objection—the electronic court automatically transferred the case *ex officio* to a standard court of general jurisdiction, where the litigation continued seamlessly under the original filing date.¹

Under the amended rules, any such procedural breakdown triggers an immediate, mandatory dismissal (*umorzenie*) of the electronic proceedings, completely terminating the case in the EPU system.¹ This structural change has introduced major systemic complications for creditors and practitioners, particularly when pursuing multiple co-defendants bound by joint and several liability (*odpowiedzialność solidarna*).⁹

The Structural Mechanics of the Post-Reform EPU Framework

The post-reform EPU is structured to handle high-volume, low-complexity monetary claims with speed and minimal cost.⁵ Litigants proceed entirely through a centralized teleinformatic platform.³ To facilitate rapid judicial processing, plaintiffs are statutorily prohibited from attaching physical or digital copies of evidence to their electronic complaints.⁷ Instead, the creditor is required only to describe and enumerate the supporting documentation in the body of the electronic form.⁷

To balance this lack of immediate evidentiary verification and prevent systemic abuse, the legislature established strict procedural gates, the failure of which results in the immediate,

non-negotiable termination of the electronic suit.¹

An essential barrier is the strict temporal limitation on EPU eligibility.² Under Art. 505^{29a} k.p.c., a creditor can only pursue claims in the electronic court that have become fully mature (*wymagalne*) within a maximum of three years prior to the day the electronic complaint is filed.² This three-year limit is a strict, substantive-procedural gate checked *ex officio* by the court, rendering EPU completely unavailable for older debts, even if the general statute of limitations has been legally interrupted.²

Furthermore, the EPU system imposes rigid technical restrictions on representation and signing.¹² Unlike traditional courts where signature defects on pleadings can be cured through a formal correction process, the EPU teleinformatic system cannot process certain representation anomalies.¹² Under established electronic filing protocols, if a plaintiff is represented by joint proxy counsel requiring joint signatures (*reprezentacja łączna*), the technical impossibility of appending a second qualifying electronic signature directly to the submission file constitutes an incurable formal defect.¹² This technical mismatch results in the immediate, automatic return (*zwrot*) of the complaint without any opportunity for the representative to cure the omission.¹²

In exchange for these rigid barriers, the EPU framework offers a highly preferential filing fee.⁵ Under the Act on Court Costs in Civil Cases (*Ustawa o kosztach sądowych w sprawach cywilnych*), the filing fee for an EPU complaint is set at only one-quarter of the standard civil filing fee, representing a major financial incentive for mass-volume creditors.⁵

$$\text{Filing Fee}_{\text{EPU}} = \max(1.25\% \times \text{Value of Dispute}, 30 \text{ PLN})$$

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In contrast, traditional civil litigation requires a standard filing fee of **5%** of the value of the dispute for claims exceeding 20,000 PLN.²¹

If the EPU case is dismissed under the amended rules, each party bears its own costs of participation under Art. 505³⁷ § 1 k.p.c., and the paid electronic fee is not automatically refunded.¹

To protect the creditor's initial financial investment, Art. 19 ust. 2 pkt 2 of the Court Costs Act provides a fee-preservation pathway.¹ If the creditor files a standard civil lawsuit against the same debtor, for the same claim, in a court of general jurisdiction within a strict three-month window from the date of the EPU dismissal order, the electronic fee is credited toward the

standard **5%** filing fee of the new action.¹ The creditor must then pay the remaining difference, which is calculated as:

$$\text{Supplemental Fee} = 3.75\% \times \text{Value of Dispute}$$

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If this three-month deadline is missed, the electronic fee is permanently lost, and the creditor must finance the traditional lawsuit anew.¹

Cost and Procedural Parameters	Legacy EPU Framework (Pre-2020)	Post-Reform EPU Framework (2020-Present)	Traditional Court Proceedings
Primary Filing Fee	1.25% of claim value ⁵	1.25% of claim value (min. 30 PLN) ⁵	5% of claim value (for claims > PLN) ²¹
Fee Preservation Window	Not applicable (automatic transfer of cases) ¹	Strictly limited to 3 months from EPU dismissal ¹	Not applicable ¹
Maturity Gate (Art. 505^{29a})	No specific age limit for claims in EPU ²⁴	Strictly limited to claims matured within the last 3 years ²	Standard civil statute of limitations applies ⁵
Failure of Service (Art. 139^{1})	Automatic transfer to court of general jurisdiction ¹	Ex-officio dismissal if PESEL mismatch is uncured in 1 month ²	Mandatorily referred to bailiff-assisted service ²⁷
Filing of Objection (Sprzeciw)	Automatic transfer to court of general jurisdiction ¹	Mandatory partial or total dismissal of EPU case ¹	Case automatically transitions to standard trial ²²

Table 1: Comparative Fee and Procedural Matrix: Legacy EPU, Modern EPU, and Traditional Litigation.

Address Verification, the PESEL Registry, and Fines for Bad Faith

A major practical challenge in EPU is the mechanism of serving the writ of payment (*doręczenie nakazu zapłaty*) to the defendant.⁸ Under the post-reform Art. 505^{34} § 1 k.p.c., the standard procedure for bailiff-assisted service (*doręczenie komornicze*) is excluded from the electronic court.⁸ Instead, the "fiction of delivery" (*fikcja doręczenia*) via double-postal notification (*podwójne awizo*) is legally valid only if the address provided by the plaintiff matches the

address registered in the national PESEL database.⁸

If a postal return indicates that the defendant does not reside at the specified address, the court compares the address with the PESEL registry.⁸ If there is a mismatch, the court sets aside the writ and grants the plaintiff a single, non-extendable one-month deadline to remove the service obstacle by providing the correct address.² Failure to meet this deadline leads to the ex-officio dismissal of the suit.¹

Because EPU operates on unverified assertions, the legislature introduced a penalty mechanism to deter fraudulent or negligent litigation.¹⁵ Under Art. 505³² § 3 k.p.c., if a plaintiff, their statutory representative, or their professional counsel designates an incorrect PESEL, NIP, or KRS number in the electronic complaint—either in bad faith (*w złej wierze*) or due to a lack of due diligence—the court is empowered to impose a significant fine (*grzywna*).¹⁵ This penalty targets creditors who use outdated records or approximate data to secure default judgments against individuals who are not the actual debtors, creating a major financial risk for negligent institutions.¹⁵

This address verification system must be integrated with the XML file specifications used by institutional creditors for mass filings.³⁴ Within the standardized XML schema, when a creditor submits thousands of claims simultaneously, they must declare the specific "solidarity type" (*typ solidarności*) for each claim.³⁴ The XML schema utilizes three distinct numeric codes to define these relationships:

- **Code 0:** Designates joint and several liability between the plaintiff and the defendants (*solidarność powoda i pozwanych*).³⁴
- **Code 1:** Designates other forms of liability, such as joint liability (*odpowiedzialność in solidum*) or specific co-borrowing structures.³⁴
- **Code 2:** Designates solidarity strictly among multiple plaintiffs (*inny powodowie*).³⁴

The integration of these XML codes with the court's automated database determines how the e-court processes service notifications and tracks compliance with the PESEL registry for each designated debtor.⁸

Joint and Several Liability in the EPU Landscape

Under Polish substantive law, joint and several liability is governed by Art. 366 of the Civil Code (*Kodeks cywilny – k.c.*).³⁵ It dictates that a creditor has the right to demand complete or partial performance of an obligation from all debtors jointly, from several of them, or from any single debtor individually.³⁵ Full performance of the obligation by any single debtor releases the remaining co-debtors from their liability toward the creditor.³⁵

In standard civil litigation, joint and several liability constitutes material co-participation (*współuczestnictwo materialne*) under Art. 72 § 1 pkt 1 k.p.c..³⁸ Crucially, it does not constitute uniform co-participation (*współuczestnictwo jednolite*) under Art. 73 § 2 k.p.c., meaning that the court's judgment does not have to affect all debtors identically, and the presence of all joint debtors is not a mandatory prerequisite for resolving the dispute.³⁸

The procedural behavior of co-defendants in summary proceedings has historically generated conflict, which became particularly acute within the automated workflows of the EPU.⁴¹ The

literal wording of Art. 505^{36} k.p.c. historically declared that if an objection was properly filed, the writ of payment "loses force in its entirety" (*traci moc w całości*).⁴¹ Some lower courts and legal commentators interpreted this strictly, arguing that an objection filed by a single co-debtor completely invalidated the writ against all co-debtors, including those who had remained passive and had not challenged the debt.⁴²

This interpretation threatened the commercial utility of joint liability in EPU, as a single active debtor could pull compliant, passive co-debtors into standard litigation.⁴²

To resolve this issue, the Polish Supreme Court issued its landmark Resolution of June 9, 2017 (III CZP 21/17).⁴¹ The Supreme Court ruled:

"The filing of an objection against a writ of payment in the electronic writ of payment proceedings causes the writ to lose its force in its entirety ONLY in relation to the co-defendant who filed the objection."⁴¹

The Court clarified that the statutory phrase "in its entirety" (*w całości*) refers strictly to the complete scope of the claim targeted at the objecting individual, preventing partial finality of claims against that specific person, but does not cross the boundary of subjective co-participation.⁴² Consequently, if a creditor sues multiple joint debtors in EPU, and only one debtor objects, the writ of payment remains valid, becomes final, and is eligible for an electronic enforcement clause (*klauzula wykonalności*) against all other passive co-debtors.³

Systemic Pitfalls of Split-Litigation and Technical Platform Limitations

While the Supreme Court's resolution preserved the finality of writs against passive joint debtors, the subsequent 2020 transition to a mandatory dismissal regime created an array of procedural traps and practical difficulties for creditors attempting to enforce joint and several liability.⁹ These challenges emerge from the rigid, automated intersection of the new statutory rules, judicial databases, and the digital constraints of the EPU software platform.⁸

The Split-Litigation Trap and Asymmetric Judgments

When a creditor sues two joint debtors (e.g., Debtor A and Debtor B) in EPU, and Debtor A files an objection while Debtor B remains passive, the case is split into two completely separate legal tracks under the combined rules of III CZP 21/17 and the post-2020 dismissal regime¹:

The first procedural track concerns the passive debtor (Debtor B), against whom the EPU writ of payment remains a final and binding title, eligible for immediate electronic execution.³

Conversely, the second procedural track governs the objecting debtor (Debtor A), which triggers an immediate, mandatory dismissal of the EPU proceedings under Art. 505^{36} k.p.c..¹ To preserve the filing fee and continue pursuing Debtor A, the creditor must initiate a completely new, standard civil proceeding from scratch in a local court of general jurisdiction within the three-month window.¹

This fragmentation creates three major operational risks:

First, the creditor faces asymmetric judgment risk under the substantive rules of joint obligations.⁴⁸ Under Art. 375 § 2 k.c., a final judgment entered in favor of one joint debtor based

on a defense common to all co-debtors completely releases the other debtors from their liability toward the creditor.⁴⁸ If the creditor pursues Debtor A in a standard court of general jurisdiction, and Debtor A successfully argues that the underlying contract is void or that the debt has been fully satisfied, the court will dismiss the action against Debtor A.⁴⁸ This favorable judgment, based on a common defense, can be legally used by Debtor B.⁴⁸ Debtor B, despite having allowed the EPU writ to become final, can file an oppositional lawsuit (*powództwo przeciwegzekucyjne*) to strip the EPU writ of its execution force, rendering the creditor's final EPU title completely worthless.⁴⁸

Second, the recourse (*regres*) relationship among the debtors is disrupted.³⁷ Under Art. 376 § 1 k.c., a joint debtor who has satisfied a creditor's claim has a right of recourse against the remaining co-debtors for their respective shares.³⁷ If Debtor B is forced to pay the creditor under the final EPU writ, but Debtor A successfully secures a judgment in standard litigation declaring that the debt never existed or was fully paid, the internal recourse relationship is ruptured.³⁷ Debtor B's recourse claim against Debtor A is legally blocked by the court judgment favoring Debtor A, creating a severe and unjust loss for the passive debtor who complied with the EPU writ.³⁷

Third, the creditor is forced to finance and manage two concurrent legal actions: an execution proceeding against Debtor B and a standard civil trial against Debtor A.¹¹ If Debtor B is discovered to be insolvent during the execution phase, and the standard trial against Debtor A is subsequently lost, the creditor will have sunk the initial electronic fee, the standard supplemental filing fee, and extensive legal representation fees with zero recovery.¹

Technical Platform Bottlenecks and Full Case Dismissals

An even more acute trap arises when there is a delivery failure regarding one of the joint debtors in an EPU action.⁹ Consider a scenario where a creditor files an EPU claim against Debtor A and Debtor B.⁹ Debtor A's address matches the PESEL database, and the writ is successfully served.⁸ Debtor B, however, has moved without updating the civil registry, resulting in a database mismatch.⁸

The court notifies the creditor of the service failure on Debtor B.⁸ The creditor is given a non-extendable one-month term to correct the address or provide evidence of residence.² Because bailiff-assisted physical tracing under Art. 139¹ k.p.c. is strictly prohibited in EPU, and the creditor cannot easily obtain non-public database updates within thirty days, curing this defect is often practically impossible.⁸

Under a literal reading of Art. 505³⁴ § 2 k.p.c., if a service obstacle is not cured within the one-month term, the court must set aside the writ of payment and dismiss the proceedings.¹ However, the EPU platform's automated architecture was not designed to handle partial finality and partial dismissal on a single electronic record.⁹ In practice, if a service failure occurs on Debtor B, the EPU system is technically unable to partition the electronic writ to allow the case to proceed against Debtor A while dismissing only the portion related to Debtor B.⁹

Consequently, first-instance EPU referendaries frequently set aside the entire writ and dismiss the entire suit, even though Debtor A was successfully served and remained completely

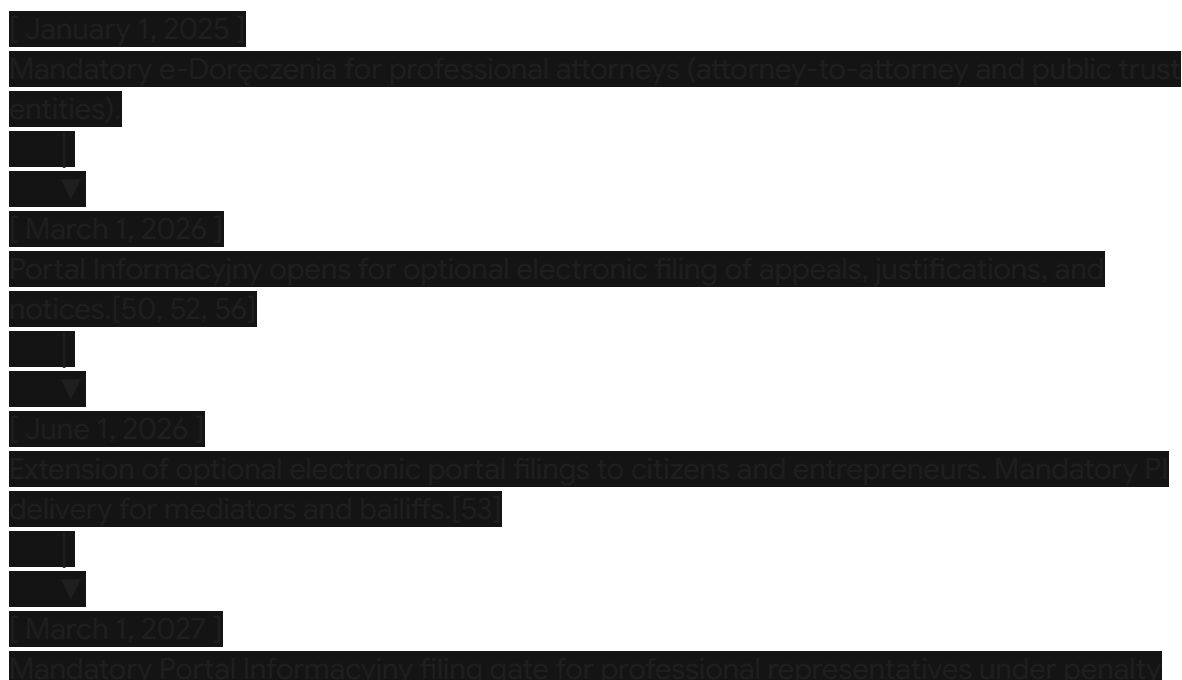
passive.⁹ This "all-or-nothing" technical lockup penalizes creditors for utilizing joint and several liability, forcing them to completely abandon EPU or face systemic, automated dismissals.⁹

The Broader Digital Context: The Portal Informacyjny Reforms (2026/2027)

To understand the operational environment in which EPU exists, it must be viewed alongside the broader, rolling digitization of the Polish judicial system.⁵⁰ Following the Act of August 5, 2025 (Dz. U. poz. 1172), Poland has entered a multi-stage transition that establishes the Court Information Portal (*Portal Informacyjny Sądów Powszechnych*) as a bidirectional electronic submission channel for professional representatives.⁵⁰

Under this statutory timeline, from March 1, 2026, to March 1, 2027, the submission of a closed catalog of pleadings—such as appeals, complaints against registrar decisions, requests for written justifications, and notices of representation—via the Information Portal is optional for professional attorneys.⁵⁰ Beginning March 1, 2027, submission of these documents via the portal becomes strictly mandatory for all professional attorneys.⁵⁰ Under Art. 125³ § 1 k.p.c., any listed pleading filed via traditional paper or standard electronic channels after this date will be ruled legally ineffective, and the court will reject the filing without a request to cure.⁵⁵

The Portal Informacyjny and e-Doręczenia Timeline



of legal ineffectiveness.

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October 1, 2029

Full integration of e-Doręczenia for all courts, tribunals, and bailiffs, replacing legacy portal

channels.

A clear causal parallel exists between the 2020 EPU dismissal amendments and the 2026/2027 Portal Informacyjny regulations.⁸ In both instances, the legislature sought to relieve the administrative burden on court registries by shifting procedural and technical risks directly onto litigants and their legal counsel.⁸ Just as the EPU reforms shifted the risk of inaccurate address registries (PESEL) onto the creditor, the portal reforms shift the operational risk of system downtime onto the practitioner.⁸

Specifically, if the portal experiences an outage on the final day of a filing deadline, the attorney is subject to late-filing penalties and rejection under Art. 125³ § 1 k.p.c., unless they can actively prove the outage.⁵⁰ The required standard of proof includes capturing real-time screenshots of system errors, exporting browser history records, and documenting connection logs.⁵⁰ This demonstrates a consistent legislative trend in Polish civil procedure: pushing digitizational and administrative burdens away from the judiciary and onto the parties.⁸

Parallel to these changes is the implementation of the Act of November 18, 2020, on Electronic Delivery (*e-Doręczenia*).⁵¹ While public trust professions have been required to maintain an active address for electronic delivery since January 1, 2025, the mandatory transition for courts, tribunals, prosecutors, and bailiffs has been legally delayed until October 1, 2029.⁵¹

Consequently, the Portal Informacyjny remains the primary digital channel for judicial communication and filing, creating a complex operational environment where attorneys must navigate separate systems for court filings (Portal Informacyjny) and inter-attorney communications (*e-Doręczenia*).⁵⁰

Feature / System	EPU Platform (e-Sąd)	Portal Informacyjny (PI)	e-Doręczenia System (BAE)
System URL	www.e-sad.gov.pl ³	Local portal based on court appeal district ⁵⁰	edoreczenia.gov.pl ⁵⁴
Bidirectional Filing	Mandatory for plaintiffs since inception (2010) ⁴	Optional in 2026; strictly mandatory starting March 1, 2027 ⁵⁰	Currently used for administrative and inter-attorney delivery ⁵¹
Legal	Direct case	Pleadings ruled	Rejection of filing or

Consequence of Failure	dismissal (<i>umorzenie</i>) ¹	legally ineffective (Art. 125 ^{3} § 1) ⁵⁵	failure of attorney-to-attorney service ⁵⁴
Target Audience	Mass creditors, debt collection firms ⁸	All professional representatives (lawyers, radcowie) ⁵⁰	Public administration, attorneys, notaries ⁵¹
Mandatory Court Integration	Fully integrated since 2010 ⁴	Fully integrated since 2024 for delivery; 2026/2027 for filing ⁵⁰	Delayed for courts and bailiffs until October 1, 2029 ⁵¹

Table 2: Comparative Breakdown of Polish Judicial Digitization Platforms (2026 State of the Law).

Tactical Scenarios for Joint and Several Debtors in EPU

To assist practitioners in evaluating the risks of multi-defendant EPU suits under the post-reform rules, the following matrix outlines the strategic pathways and procedural outcomes based on different debtor behaviors and service results:

Primary Debtor (A) Action	Secondary Debtor (B) Action	Post-Reform Procedural Outcome (Art. 505^{34} - 505^{37} k.p.c.)	Second- and Third-Order Systemic Risks
Remains Passive ³²	Remains Passive ³²	The EPU writ becomes fully final and enforceable against both debtors jointly. ³	The ideal scenario for the creditor, securing a centralized, low-cost electronic enforcement title. ³
Files Objection ⁴	Remains Passive ³²	Proceedings against A are dismissed under Art. 505 ^{36} . ¹ Writ against B remains final. ³	The Split-Litigation Trap: Creditor must execute against B while simultaneously filing a new

			standard suit against A. ¹ High risk of divergent judgments and recourse conflicts. ³⁷
Served Successfully ⁸	Service Fails (PESEL Mismatch) ⁸	Writ against B is set aside; 1 month to cure. ² Failure results in dismissal under Art. 505 ^{34} § 2. ¹	The Technical Lockout Trap: Systemic EPU software limitations often prevent partial dismissal, forcing the court to dismiss the entire case, including successfully served Debtor A. ⁹
Files Objection ⁴	Files Objection ⁴	The entire EPU case is dismissed under Art. 505 ^{36} . ¹	Creditor must decide whether to file a combined standard suit or separate suits within 3 months to preserve EPU fee credits. ¹

Table 3: Tactical Scenarios and Procedural Outcomes for Joint and Several Debtors in EPU.

The modern Electronic Writ of Payment (EPU) framework in Poland presents a dual reality.⁵ While it remains an exceptionally fast and cost-effective mechanism for pursuing simple, undisputed debts against single individuals with verified addresses, it has become a procedural minefield for complex commercial claims involving multiple, jointly and severally liable debtors.⁸ The transition from direct case transfers to automatic, mandatory dismissals, combined with the technical limitations of the EPU platform, frequently turns joint and several lawsuits into costly operational dead-ends.¹

To navigate this highly digital and punitive civil procedure landscape, financial institutions, mass utility creditors, and legal practitioners must adopt specific risk-mitigation strategies: Creditors should never file an EPU claim against multiple defendants without first subjecting all co-defendants' addresses to real-time PESEL database verification.⁸ If even a single co-debtor's address fails to match the registry, the creditor should decouple that debtor from the EPU filing to prevent the "all-or-nothing" service trap from invalidating the entire action.⁹ For joint and several obligations (such as spousal debts, co-borrowers, or civil partnership

obligations), legal departments should actively evaluate whether to sue the debtors jointly in EPU or file separate, individual EPU claims.⁹ Filing separate actions prevents an objection or service failure from one debtor from affecting the finality of the writ against the other, though it requires managing the subsequent recourse (*regres*) relationships.⁹

To prevent the sinking of EPU filing fees, creditors should integrate automated calendar alerts into their case management software.¹ The moment an EPU dismissal order is issued under Art. 505^{34} or Art. 505^{36} k.p.c., a standard civil complaint must be prepared and filed within ninety days to ensure that the EPU fee is credited and not permanently lost.¹

In light of the mandatory portal filing deadlines taking effect on March 1, 2027, law firms and corporate legal departments must establish strict internal IT protocols.⁵⁰ Legal assistants and counsel must be trained to automatically capture metadata, connection logs, and time-stamped screenshots on any day a portal filing is attempted, ensuring they possess the necessary evidence to successfully claim deadline extensions in the event of systemic judicial portal failures.⁵⁰

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